NYAYMITRA 2.0 — Legal, Privacy and Safety Readiness Report

Legal advice vs information, human review, data protection, AI data flow, DPDP, risks

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1. Legal information vs legal advice

NYAYMITRA 2.0 provides **legal information only**, not legal advice. Every answer carries:

- A disclaimer: "NYAYMITRA is not a lawyer, a court or a judge, and does not decide cases."
- A disclaimer: "Answers are information built from the sources listed; they are not legal advice."
- A disclaimer: "Verify anything important against the official source or with free legal aid (15100)."
- Verification status (verified / requires human verification) and warnings when sources are insufficient.

The system never states guilt/innocence, never predicts outcomes, never claims the user will win, and never impersonates a lawyer (enforced by `guard.validate_answer`).

2. Human legal review requirements

Legal content awaiting qualified review:

Constitution articles	9	0
Departments	11	0 (verification status tracked)
Triage guides	5	0

A human legal reviewer must sign off using the review packet (`GET /api/v1/admin/review-packet`) and `docs/legal/HUMAN_LEGAL_REVIEW_CHECKLIST.md`. This is **BLOCKED** pending appointment of a named reviewer (blocker B-2).

3. Official source verification

- 9 constitution articles are owner-written explanations.
- **0 articles have authoritative source text loaded.**
- **0 articles are human-verified.**
- Official Constitution PDFs must be supplied by the repository owner and ingested via `scripts/ingest_constitution.py` (dry run, then `--apply --backup`), followed by `scripts/constitution_coverage.py`. (Blocker B-1)

4. Citizen data protection

Data minimisation	Only fields needed for complaint routing are collected
PII redaction before logging/storage	`logging_utils.redact_and_truncate` applied to query text, answers, errors

Token-based access	Complaint access token stored as SHA-256 hash; never transmitted back
Constant-time comparison	Token lookup does not reveal whether a reference exists
Rate limiting	Per-end-class limits (read/write/AI/admin)
Retention	Default 180 days (`NYAYMITRA_PII_RETENTION_DAYS`)
Deletion	`scripts/purge_data.py` (dry-run default) removes old complaints/documents/query logs
No cookies	None set
Cache control	Personal-data responses carry `Cache-Control: no-store`

5. External AI provider data flow

• **Default (offline):** No AI provider configured → `ai_configured` is False → deterministic offline composer → **no data leaves the application.**

• **If configured** (`NYAYMITRA_AI_PROVIDER=openai_compatible` + base URL + model + API key): the citizen question (up to 1,000 chars, fenced as data) and retrieved sources are sent to the external endpoint. **There is no PII redaction before transmission.** If a citizen includes phone/email in their question, it is transmitted. This is a disclosed limitation.

• API key is never hard-coded and never logged.

• Provider is optional; the system degrades safely to offline when unavailable.

6. Consent and transparency

• Complaint flow requires an explicit consent checkbox before submission (submit button disabled until ticked).

• Preview shown before any write; reference + token shown once after submission.

• Every answer lists its sources with verification status and carries disclaimers.

• Unverified content is labelled "requires human verification."

7. Data retention and deletion

• Default retention 180 days.

• `scripts/purge_data.py` (dry-run default) deletes old complaints, their documents/files, and old query logs; retains audit trail (counts only).

• Refuses any path outside the storage directory.

• No self-service deletion endpoint yet (planned).

8. DPDP-related obligations and commencement dates

DPDP Act 2023 framework sections	In force (13 Nov 2025)	Product is preparing
DPDP §6(9) / Consent Manager Rule 4	Commences 13 Nov 2026	Not yet applicable
DPDP main obligations (Sections 3–17, Rules 3, 5–16, 22, 23)	Commence 13 May 2027	Not yet in force
IT Act 2000 §43A / §72A + SPDI Rules 2011	Apply now to body corporates handling personal data	Security practices + no unauthorized disclosure

The product prepares for DPDP (consent, minimal collection, redaction, retention, grievance-officer placeholder) but is **not yet subject to DPDP main obligations** (they commence 13 May 2027).

9. Risks and mitigation

See `Risk_Register.md` (technical, legal, privacy, security, operational, adoption). Key mitigations: offline-first default, PII redaction, safety guard, disclaimers, human legal review, no public deployment without owner approval.

10. Important disclaimer

This project is **not legally certified, not legally compliant, and not government-approved** without independent evidence. All legal assessments are self-assessed and require qualified legal review.

11. Repository

https://github.com/dhundhwana-arch/Nyaymitra-2.0 | commit `068cf9f`

NYAYMITRA 2.0 — functional software prototype / Proof of Concept — subject to independent evaluation. Not legal advice; not a replacement for courts, lawyers, police, or government authorities. https://github.com/dhundhwana-arch/Nyaymitra-2.0 (branch arena/812d6894-nyaymitra-2-0, commit 068cf9f)